



File No.: EXP202305682

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection, and based on the following,

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on April 13, 2023. The complaint is directed against BANCO SANTANDER, S.A. with NIF A39000013 (hereinafter, the respondent), regarding the installation of a video surveillance system located at a branch situated at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 5.1.c) and Article 13 of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that the respondent has an office at ***ADDRESS.1 and that outside this office there is a video surveillance camera that may inappropriately capture the public road, without the camera being properly signposted with the mandatory information sign regarding the processing (video surveillance), which should inform about the data controller, the purpose of the use of the captured images, and the means to exercise the rights of access, rectification, deletion, limitation of processing, and opposition.

The complainant provides images of the location of the camera and the façade of the office where the contested camera is located.

The documents submitted, for evidentiary purposes, are:

- Photographic report of the branch from the outside.
- Link to a Google Maps address redirecting to the location of the aforementioned branch.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via electronic notification, was received by the responsible party on May 5, 2023, according to the certificate in the file.

The respondent did not respond to the forwarding and request for information notified.

THIRD: On July 13, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: On September 3, 2024, the Director of the AEPD decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 13 of the GDPR and Article 5.1.c) of the GDPR, classified under Article 83.5.b) of the GDPR and Article 83.5.a) of the GDPR.

The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, LPACAP, and the respondent submitted a written statement on September 26, 2024, in which, in summary, it requested the archiving of the sanctioning file, expressing its disagreement with the facts subject to the complaint, arguing that its video surveillance system complies with regulatory requirements by having an exclusion and/or activation zone, such that there is hardly any image of the public road. Regarding the information sign for the video surveillance area, it states that it is installed at the entrance to the branch.

It provides a report dated May 23, 2024, on the Video Surveillance System issued by its Banking Security and Coordination Department, detailing:

- Operation of the Video Surveillance System.
- Protocol for delivering images to Security Forces and Courts.
- Video Surveillance System of the Banking Branch at ***ADDRESS.1.

- Evidence (photographs):

1. Access door with sign announcing the video surveillance area.
2. Sign announcing the Video Surveillance Area.
3. Captures from cameras installed in the branch.
4. Image viewing monitor.
5. Capture from the façade camera and pinhole where the exclusion and/or activation zone can be observed.

FIFTH: On December 20, 2024, a proposal for resolution was issued, solely for the infringement contemplated in Article 13 of the GDPR:

"Regarding the sign announcing the video surveillance area and taking into account again the 'Report on the video surveillance system,' issued by the Banking Security and Coordination Department, in which the Evidence section includes items 1 and 2 titled 'Access door with sign announcing the video surveillance area' and 'Sign announcing the Video Surveillance Area,' the respondent provides three photographs that demonstrate that the sign was not sufficiently visible to all passersby. This is because the mentioned sign is adhered, from the inside, to the glass of the entrance door to the banking branch, which is accessed through a small 'portico.' For individuals accessing this branch if...

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is visible but hardly so for those merely passing by, as no other sign indicating a video surveillance area is observed on the façade or glass of the branch. Furthermore, the image of the entrance door to the branch, with the attached sign, is not very clear for reading purposes, perhaps due to the reflection of the glass; so much so that the respondent has provided complete evidence of the text of the sign. Therefore, from the documentation provided by the respondent, it is not proven that the sign indicating the video surveillance area is visible to all passersby.

BANCO SANTANDER submitted, on 14/01/2025, a written statement of allegations against the proposed resolution, in which it essentially argues regarding the sign announcing the video surveillance area that, "at the entrance of the branch, there are signs announcing the video surveillance area, which clearly and fully visibly inform about the exercise of rights and where to direct oneself for that purpose."

PROVEN FACTS

SOLE: Regarding the sign announcing the video surveillance area, the respondent states that, at the entrance of the branch, there are signs announcing the video surveillance area, which clearly and fully visibly inform about the exercise of rights and where to direct oneself for that purpose. Indeed, taking into account the already known "Report on the video surveillance system" and the 3 photographs provided by the respondent, it is established that the sign is not sufficiently visible to all passersby. This is because the aforementioned sign is attached, from the inside, to the glass of the entrance door to the bank branch, which is accessed through a small "portico." For individuals accessing the branch, it is visible, but hardly so for those merely passing by on that street, as no other sign indicating a video surveillance area is observed on the façade or glass of the branch. Additionally, the image of the entrance door to the branch, with the attached sign, is not very clear for reading purposes, perhaps due to the reflection of the glass.

Therefore, from the documentation provided by the respondent, it is not proven that the sign indicating the video surveillance area is visible to all passersby.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and

the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

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Likewise, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Individuals or legal entities, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained cannot be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled, in the terms already indicated.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, in the terms already indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the moment knowledge of the existence of the recording is obtained.

6.- The responsible party must maintain a record of activities of the processing carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The responsible party must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, where appropriate, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, as long as there is a risk to the rights and

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If there is a breach of security affecting the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Agency for Data Protection provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
 - the Guide on the use of video cameras for security and other purposes,
 - the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).
- It is also of interest, in the case of processing low-risk data, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing it carries out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

III

Conclusion

In the case at hand and from the documentation provided in the complaint, it is evident that a video surveillance system has been installed outside a branch belonging to the respondent, BANCO SANTANDER.

Regarding the sign announcing the video surveillance area, the respondent states: "At the entrance of the branch, there are signs announcing the video surveillance area, where rights are clearly and fully visible regarding how to exercise them and where to direct such requests."

From the analysis of the evidence provided by the respondent "Access door with sign announcing video surveillance area," which shows the image of the branch's facade, there is a sign announcing the video surveillance area that is affixed to the glass, from the inside, of the entrance door.

Therefore, as stated in the proven facts of this resolution, while it has not been proven that there is a sign that is visible to all passersby, it cannot be considered proven that it is not established under such conditions.

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And all this, taking into account that "the principles inspiring criminal law are applicable, with certain nuances, to sanctioning Administrative Law, given that both are manifestations of the punitive order of the State." That is to say, since the sanctioning power of the Administration is one of the manifestations of the ius puniendi or sanctioning power of the State, it is necessary to extend the principles and guarantees of Criminal Law to sanctioning Administrative Law, preserving the natural differences of each procedure.

As a consequence of the above, the principle "in dubio pro reo," which in case of doubt regarding a specific fact obliges to resolve such doubt in the most favorable way for the interested party, is applicable to sanctioning Administrative Law.

The presumption of innocence must prevail without exceptions in the sanctioning order and must be respected in the imposition of any sanctions, as the exercise of the ius puniendi in its various manifestations is conditioned by the play of evidence and a contradictory procedure in which one's own positions can be defended.

Therefore, based on what is indicated in the previous paragraphs, no evidence has been found that proves the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All this without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing and in accordance with what has been indicated, by the President of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to BANCO SANTANDER and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Jurisdiction.

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Contentious-Administrative, within a period of two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

938-101224

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with art. 48.2 LOPDGDD, due to the vacancy of the positions of President and Deputy

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